

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8a-yqqk-zdh7
Comments Due: March 15, 2025
Submission Type: Web

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-5247
Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

To whom it concerns:

In regard to the development of an artificial intelligence action plan, any such plan must require would-be users of intellectual property held by others to enter into agreements before such use. The plan should require compensation for holders of intellectual property rights in the event of unauthorized use. Traditional "fair use" analysis should not apply, because the technology underlying generative artificial intelligence uses the entire work to inform its models.

Indeed, all contracts assigning intellectual property rights executed prior to the final enactment of the plan that do not explicitly mention use of intellectual property rights for purposes related to artificial intelligence should be construed so as to exclude AI use. For contracts to have AI use included in their terms, parties to those contracts will have to affirmatively agree to such a provision on a date after the final enactment of the plan.

For the government to allow unauthorized use of intellectual property rights for artificial intelligence without compensation would violate the Takings Clause of the Fifth Amendment to the U.S. Constitution. Policymakers need to protect the intellectual property rights of property holders in order to avoid a massive surge in litigation surrounding unauthorized use of intellectual property for artificial intelligence.

Without the creators of intellectual property, artificial intelligence would have no value. Creators deserve just compensation for their work. Any policy that allows use of intellectual property for artificial intelligence without such compensation not only unfairly enriches the actors who take that property but also -- and more importantly -- removes any incentive for creators to continue to produce new work.

I urge you to craft a plan that rewards the production of creative intellectual property and punishes its theft.

Thank you for your consideration.